

HOUSE BILL 1644

By Atchley

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 57, Chapter 7; Title 63 and Title 67, Chapter
4, Part 10, relative to the "Nitrous Oxide Abuse
Prevention and Retail Sale Prohibition Act."

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, is amended by adding the following as a new part:

39-17-2001. This part is known and may be cited as the "Nitrous Oxide Abuse Prevention and Retail Sale Prohibition Act."

39-17-2002. As used in this part, unless the context otherwise requires:

(1) "Nitrous oxide" means:

(A) N₂O, a colorless gas or liquid that is also referred to as dinitrogen monoxide, nitrogen oxide, or laughing gas; and

(B) Any substance containing nitrous oxide;

(2) "Sales at retail" means and includes any transfer, made in the ordinary course of trade or in the usual prosecution of a vape shop retailer's business, of nitrous oxide to the purchaser for use or consumption and for a valuable consideration;

(3) "Vape shop" means any premises dedicated to the display, sale, distribution, delivery, offering, furnishing, or marketing of electronic smoking devices, liquid nicotine, liquid nicotine containers, or vapor products; and

(4) "Vape shop retailer" means every person, partnership, firm, corporation, or association engaged in the business of making sales at retail of

electronic smoking devices, liquid nicotine, liquid nicotine containers, vapor products, or nitrous oxide within this state.

39-17-2003.

(a) Notwithstanding § 39-17-452, it is an offense for a vape shop retailer, or a distributor, wholesaler, or importer of vape products, who sells or offers for sale a vapor product for retail sale in this state to sell nitrous oxide.

(b)

(1) The following penalties apply to violations of this section:

(A)

(i) A vape shop retailer, or a distributor, wholesaler, or importer of vape products, who sells or offers for sale nitrous oxide for retail sale in this state is subject to a civil penalty of up to five hundred dollars (\$500) for each individual product offered for sale in violation of this section;

(ii) The civil penalty for a second violation under this subdivision (b)(1) within a twelve-month period is at least seven hundred fifty dollars (\$750) but not more than one thousand dollars (\$1,000) per product, and the suspension of the license of the vape shop retailer, or distributor, wholesaler, or importer of vape products for thirty (30) calendar days; and

(iii) The civil penalty for a third violation under this subdivision (b)(1) within a twelve-month period is at least one thousand dollars (\$1,000) but not more than one

thousand five hundred dollars (\$1,500) per product, and the revocation of the license of the vape shop retailer, or distributor, wholesaler, or importer of vape products; and

(B) A manufacturer who knowingly causes nitrous oxide to be sold for retail sale in this state, whether directly or through a vape shop retailer, or a distributor, wholesaler, or importer of vape products, or similar intermediary or intermediaries, is subject to a civil penalty of ten thousand dollars (\$10,000) for each individual nitrous oxide product offered for sale in violation of this section.

(2) In an action to enforce this section, the state is entitled to recover costs, including the costs of investigation, expert witness fees, and reasonable attorney fees.

(3) Notwithstanding this section to the contrary, a repeated violation of this section constitutes a deceptive trade practice under § 47-18-104.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.